

Airports Authority of India (Management of Airports) Regulations, 2003

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Airports Authority of India (Management of Airports) Regulations, 2003

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Airports Authority of India (Management of Airports) Regulations, 2003

Rule AIRPORTS-AUTHORITY-OF-INDIA-MANAGEMENT-OF-AIRPORTS-REGULATIONS-2003 of 2003

Published on 30 June 2003

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Airports Authority of India (Management of Airports) Regulations, 2003

Published vide Notification No.AA/PERS/EDPA/Reg/2002, dated 30.6.2003

Last Updated 1st July, 2019

No.AA/PERS/EDPA/Reg/2002. - In exercise of the powers conferred by Sub-Section (2) read with Clause (o) and sub-section 4 of Section 42 of the Airports Authority of India Act, 1994 (55 of 1994

), and in suppression of the International Airports Authority of India (Management of Airports) Regulations, 1982 and National Airports Authority (Management of Airports) Regulations, 1989 except as respect things done or omitted to be done before such suppression, Airports of India, with the previous approval of the Central Government, hereby makes

the following regulations, namely: -

1.

Short title and commencement.

(1)

These regulations may be called the Airports Authority of India (Management of Airports) Regulations, 2003.

(2)

These regulations shall come into force on the date of their publication in the Official Gazette.

2.

Application and Scope.

- They shall apply to all airports and civil enclaves to which the Airports Authority of India Act, 1994 applies.

3.

Definitions.

- In these regulations, unless the context otherwise requires : -

1. "Act" means the Airports Authority of India Act, 1994 (

55 of 1994

);

2. "Authority" means the. Airports Authority of India, established under the Act;

3. "Airport" means an aerodrome as defined in sub-section (b) of Section 2 of the Act;

4.

"Civil Enclave" means an aerodrome as defined in Sub-section (i) of Section 2 of the Act;

5.

"Apron" means a defined area, on a land aerodrome, intended to accommodate aircraft for purposes of loading or unloading passengers, mail or cargo, refuelling, parking or maintenance;

6.

"Air Traffic Service" includes flight information service, alerting service, air traffic advisory service, air traffic control service, area control service, approach control service and airport control service;

7.

"Chairperson" means the Chairperson of the Authority;

8.

"Competent Authority" means in relation to exercise of any power, the Authority, the Chairperson, and any member authorised by the Chairperson, Airport Director or Controller of Aerodrome or In charge of any Airport or civil enclave or any other officer specified by the Chairperson in that behalf;

9.

"Customs Act" means the Customs Act, 1962 (

52 of 1962

);

10.

"Manoeuvring Area" means that part of the aerodrome to be used for the take off, landing and taxiing of aircraft, excluding aprons;

11.

"Member" means a member of the Authority;

12.

"Motor Vehicles Act" means the Motor Vehicles Act, 1988 (

59 of 1988

); and

13.

"Movement Area" means that part of an aerodrome to be used for the take off, landing and taxiing of aircraft, consisting of the manoeuvring area and the apron(s);

4. Restrictions on aircraft, vehicles and persons using the Airport or civil enclave .

(1)

Between sunset and sunrise, as well as by day when visibility is less than one thousand five hundred meters, vehicles

operating on parts of the airport or civil enclave where the Motor Vehicles Act, 1988 does not apply, shall have their lights on.

(2)

All vehicles operating on parts of the airport or civil enclave to which the Motor Vehicles Act does not apply, when operating in the operational area, beside the normal lights, should be fitted with flashing obstacle lights on top of the vehicles. During night as well as during day when visibility is less than one thousand five hundred meters, the vehicles should keep their obstacle lights switched on when operating in the operational area. The specifications for the obstacle lights will be as follows : -

Colour:-

Flashing Blue for vehicles associated with emergency or security and flashing yellow for other vehicles.

Effective: -

200 to 400 cd/m² for yellow light on

Intensity

follow-me vehicles and 40 to 400 cd/m²

of the flash

for blue or yellow lights on other vehicles.

Flash Rate : -

60 to 90 flashes per minute.

(3)

No person shall, without the prior permission from the Air Traffic Control Unit of the airport, run up aircraft engine on apron or in hangar.

(4)

AM vehicles operating on any part of the airport or civil enclave, where the Motor Vehicles Act does not apply, shall conform to the emission norms laid down by the Local Government or Competent Authority.

(5)

No person shall enter or climb upon or attempt to enter or climb upon any part of any aircraft without the authority of the person in charge of the aircraft or owner of the aircraft, or Central Government.

(6)

The pilot or owner or a person in charge of any aircraft shall arrange to moor properly or otherwise secure his aircraft, if he parks the aircraft in the open and not in a hangar.

(7)

No person shall place an aircraft anywhere at the airport or civil enclave other than at the area and positions designated by the Competent Authority.

(8)

No person shall transport or store any hazardous goods or materials or animals at the airport or civil enclave unless special permission of Competent Authority or the Central Government is taken and brought to the notice of the Competent Authority.

(9)

No person shall commit any act of causing or tending to cause an outbreak of fire.

5.

No person shall, without obtaining 'No Objection' from the Competent Authority fill or discharge any container including any part of the vehicle liquid fuel, elsewhere than in a place approved for that purpose by the Competent Authority and as prescribed in Indian Aircraft Rules, 1937.

6.

No person without lawful authority or reasonable excuse shall tamper or interfere with or damage or remove or misuse or attempt to tamper or interfere with any telephone or public address system, any lift, escalator, conveyor belt or any mechanical or electrical or wireless telegraph apparatus, machinery line, post or other thing whatever being part of or used in the said apparatus or in the working thereof.

7.

No person shall slaughter or flay any animal or deposit or drop any rubbish, filth, garbage or, any other polluted or

obnoxious matter which attracts or is likely to attract vultures or other birds and animals in the airport or civil enclave except in accordance with and subject to the terms and conditions of a permission in writing issued by the Competent Authority.

8.

(1)

No person shall drive any vehicle on premises of the airport or civil enclave, where the Motor Vehicles Act does not apply, unless he has been specifically authorized by the Competent Authority after passing any test or examination as may be prescribed by the Competent Authority.

Provided, however, that the Competent Authority shall also require such a person to possess licence under the Motor Vehicles Act, after passing such test or examination as may be prescribed thereunder before permitting him to drive any vehicle in those parts of the airport or civil enclave where the aforesaid Act is not applicable.

(2)

On parts of the airport or civil enclave to which the Motor Vehicles Act does not apply, no person shall drive a motor vehicle recklessly or at a speed prohibited by the Competent Authority under sub rule(3) of regulation 8.

(3)

The Competent Authority shall have the right to specify such restrictions on speed of vehicles in any part of the airport or civil airport or civil enclave as he may deem fit and also to exercise control on parking of vehicles at the airport or civil enclave and the driver of vehicle shall conform to those restrictions and observe all signs and instructions put up by the Competent Authority.

(4)

No person whilst driving or propelling a vehicle on parts of the airport or civil enclave to which the Motor Vehicles Act does not apply, shall neglect, fail or refuse to comply with an indication or direction given by either :-

(i)

a traffic sign placed on or near such parts of the airport or civil enclave or

(ii)

a police officer or an officer of the Authority for time being engaged in the regulation of traffic.

(5)

In case an accident occurs on a part of the airport or civil enclave where the Motor Vehicles Act does not apply, the driver of the vehicle involved shall stop and shall report the accident to the Competent Authority and/or to the Police Officer on duty as soon as is reasonably practicable, and in any event before leaving the airport or civil enclave.

9.

No such mobile equipment or vehicles as have not been issued with certificate of fitness by the Local Government Transport Authority, shall be permitted to operate in the movement area at the airports. Drivers and owners of such vehicles shall present themselves to the Competent Authority or such officer(s) authorised in this behalf for such tests or checks as may be prescribed by him for issue of certificate where such certificates have not been applied for, to the Local Government Transport Authority.

10.

Unless otherwise provided under the Act or by a general or special order in writing by the Central Government, the use of the movement area of Airport, by an aircraft shall be subject to payment of such landing, parking or housing fees or charges as are levied by the Authority from time to time. In the event of nonpayment of the requisite fee or charges, the Competent Authority shall have a right to detain or stop departure of the aircraft till the fees or charges are paid to Authority, which may include the current and accumulated dues.

[Provided that in respect of an aircraft which is to be exported under rule 32A of the Aircraft Rules, 1937, the current and accumulated dues shall include only such dues that accrued in respect of that aircraft and in relation to flights operated by that aircraft during the period comprised of three months immediately preceding the date of declared default and the period subsequent to the date of declared default up to the date of departure of the aircraft from India:

Provided further that the Authority shall retain the right to recover the balance dues, if any from the concerned airline.

Explanation. - For the purposes of this regulation, the date of declared default means the date on which the application for deregistration of the aircraft has been submitted to the Director General of Civil Aviation under the Aircraft Rules, 1937.]

[Inserted by Notification No. OPS/764/Legal/2017/Part 1314, dated 16.11.2018 (w.e.f. 30.6.2003).]

[Provided also that the Authority shall give a notice in writing to the applicant for deregistration within five working days of receiving the intimation from the Director General of Civil Aviation regarding filing of the application for deregistration of the aircraft under sub-rule (7) of rule 30 of the Aircraft Rules, 1937, requiring him to pay the dues referred in the first proviso before seeking permission for the departure of the aircraft from India]

[Substituted by Notification No. Ops/764/Legal/2017/Part 1314, dated 27.3.2019.]

11.

In the process of landing, taking off, taxiing or parking an aircraft or in any way using the airport or civil enclave, if any damage is caused to the lighting or other fixtures at the airport or civil enclave, the owner or operator of the aircraft concerned shall be liable for paying damage charges as may be determined by the Authority.

12.

In the event of an accident involving an aircraft within the premises of the airport or civil enclave, the person in-charge or commander of the aircraft or the owner, the operator or the hirer of the aircraft shall notify to the Competent Authority as soon as possible but not later than twenty four hours.

13.

No person shall work or use any mechanical, electrical or other device line, system, electrical or electronic apparatus that generates, or designed to generate or liable to generate electro-magnetic energy or erect any Transmitter or Receiver antenna at the airport without the specific approval of the Competent Authority.

14.

No person shall smoke in or otherwise bring any naked light into or in any place anywhere within thirty meters near an aircraft or a store of liquid fuel or explosive where any such act is prohibited by notice or under the provisions of the Aircraft Act, 1934, the Aircraft Rules, 1937 and any directive issued in this behalf.

15.

The Competent Authority shall have the power to remove or cause to be removed any person from the airport or civil enclave area if in the opinion of that authority such person's presence is not legitimate and is likely to obstruct the normal functioning of the airport or civil enclave and is likely to endanger the safety of aircraft or other persons.

16.

Prevention of danger to public arising from the use and operation of aircraft and vehicles.

(1)

The Competent Authority may issue local orders from time to time in regard to use of the airport or civil enclave as contained in these regulations.

(2)

Towed aircraft shall follow the routes prescribed by the air traffic control service.

(3)

All vehicles operating in the movement area shall be, if required by the Competent Authority, fitted with radio or telephone equipment enabling two-way communication with the ground units as may be specified by the Competent Authority.

17.

Prevention of obstruction within the Airport or civil enclave for its normal functioning.

(1)

No person shall unlawfully obstruct in any way or interfere with the proper use of the airport or civil enclave.

(2)

No person shall obstruct unlawfully any person acting in the execution of his duty in relation to the operation of the airport or civil enclave including the conveyance of passengers, their baggage and other goods and the maintenance and servicing of aircraft.

(3)

Without the permission of the Competent Authority no person shall, to the annoyance of any other person, sing, dance, shout, play musical instrument or erect any apparatus for transmission, receipt, recording, reproduction or amplification of sound, speech or images.

(4)

No person shall organise or take part in any public assembly, demonstration, dharnas or procession likely to obstruct or

interfere with proper use and orderly functioning of the airport or civil enclave or to cause serious public disorder or obstruct or interfere with the comfort, convenience and safety of passengers using the airport or civil enclave.

(5)

No person shall without the approval of the Competent Authority store cargo, drums, cases, building materials, spare parts and other objects outside the places or rooms intended or designated for the purpose.

(6)

No person shall without approval of the Competent Authority dig or cut trenches for any purpose such as laying electrical or communication or data cables etc.

18.

Prohibiting or restricting the parking or waiting of any vehicle of carriage within the Airports and Civil Enclaves.

(1)

No person shall, without the permission of the Competent Authority, drive or park a vehicle elsewhere than in a place provided for the passage or accommodation for such vehicles. He shall be liable to pay charges at such rates as decided by the Competent Authority from time to time for parking of vehicles in such authorised places.

(2)

No person shall, on parts of the airport or civil enclave to which the Motor Vehicles Act does not apply, wait, leave or park a vehicle or equipment in excess of the permitted time in an area where the period of waiting is restricted by notice or order.

(3)

Any vehicle parked in an unauthorised place, or in excess of the permitted time of the parking, shall be liable to be removed or caused to be removed and towed away at the expense of the owner without liability for damage thereto arising from or out of such removal or towage.

(4)

No person shall ply a taxi for hire except from an authorised stand approved for that purpose and indicated by proper signs. The operation of the taxis within the airport or civil enclave area shall be regulated by a local order issued by the Competent Authority.

19.

Entry into Terminal Building.

(1)

No person shall enter the Terminal Building or part of such building unless he holds a valid admission ticket issued by Authority valid for entry therein or valid entry permit :

Provided that this sub-regulation shall not apply to :

(a)

any passenger embarking, disembarking or in transit who holds a valid air ticket or;

(b)

any person who is engaged on regular duty and is exempted from the provisions of this sub-rule by General or special order in writing from the Competent Authority and who is in possession of valid airport entry permit.

(2)

An admission ticket may be obtained from the Competent Authority on payment of such amount as may be specified by the Competent Authority from time to time and shall be produced for examination on demand by any official authorised in this behalf by the Competent Authority.

(3)

(a)

An admission ticket may be a single entry ticket authorising single entry or a seasonal entry ticket authorising several entries during a season, that is to say, a month, a quarter, or half year, into the terminal building or part of such building.

(b)

A single entry ticket shall be valid for entry once only, into such building or part.

(c)

A seasonal entry ticket shall be valid for the period specified therein irrespective of the number of entries into such building or part.

(d)

Notwithstanding anything contained in these regulations, the Competent Authority may, if he is satisfied that it is necessary or expedient to do so for the maintenance of proper order or decorum, refuse admission to any person into the terminal building or any part of such building or require any person in such building or part, to leave the same.

(4)

Every person shall comply with any notice prohibiting or restricting access of any person or vehicle to any building, road or part of the Terminal Building.

20.

Preserving order within the Airport or civil enclave and preventing damage to property therein.

(1)

No person using the airport or civil enclave shall handle, interfere with or in any way meddle with fixtures, fittings, equipment or other property of the Authority.

(2)

No person shall behave in a disorderly, indecent or offensive manner within the airport or civil enclave area.

(3)

No person shall be in a state of intoxication while within the airport or civil enclave.

(4)

Every person handling or using equipment or property of the Authority shall do so in accordance with the directions and instructions which may be issued by the Competent Authority.

(5)

No person shall smoke inside departure or arrival and sterile lounges at airport or civil enclave except where designated smoking chambers or areas are established.

(6)

No person shall use any language likely to cause offense or annoyance to any person.

(7)

No person shall display any flag, banner, poster, emblem or write slogans in or around the airport or civil enclave or on any part of Terminal Building.

(8)

No person shall throw in open, loose papers, cigarette butts or ash, plastic cups or glass etc. in the airport or civil enclave including terminal building, and that such items shall be deposited at designated bins, provided at the airport or civil enclave.

(9)

No person shall, without the permission of the competent authority, remove, displace, damage, deface, or alter any building structure or other property whether movable or immovable (including bill or notice boards) forming part of or provided for or in connection with the airport or civil enclave or erect or place on any part of the airport or civil enclave any such structure or property.

(10)

No person shall spit or paste chewing gum at any place of Terminal Building of airports or civil enclaves.

21.

Regulating or restricting advertising within the airport or civil enclave.

(1)

No person shall without the permission of the Competent Authority post, distribute or display signs, advertisements, circular or other printed or written matter at the airport or civil enclave.

(2)

The Competent Authority may remove or cause to be removed at the cost of the party concerned any unauthorised boards, advertisements, posters, counters, kiosks or other structures within the airport or civil enclave premises.

22.

Requiring any person to leave the airport or any particular part of the airport or civil enclave.

- Any person acting in contravention of these regulations can be asked by the Competent Authority or their authorised representative to leave the airport or civil enclave area.

23.

Photography and film shootings at airport and civil enclave.

(1)

No person shall take or cause or permit to be taken at the airport or civil enclave any photographs, still or video filming, except with the prior permission in writing to be granted by Competent Authority.

However, no such permission shall be required by passengers or their relatives for taking still photographs or video film on the City side and in non-sterile areas of the terminal building.

(2)

No person shall voluntarily obstruct movement of passengers, movement of aircraft and working of Government and Airlines offices at the airport or civil enclave and shall undertake photography only under the supervision of the Representative of the Authority.

(3)

The person authorised to compose film shooting shall ensure that the film shooting shall not attract the public likely to cause breach of peace and proper functioning of the airport or civil enclave.

(4)

The person permitted to take photographs shall be liable to pay to the Authority the charges as decided by Competent Authority from time to time. However, still photography for non-commercial purpose on the city side and inside the Terminal Building shall not attract any charges.

(5)

The competent authority for granting permission for photography and film shooting inside the Terminal Buildings and on the Land side will be Airport Director or In charge of the airport or civil enclave and for the Air-side, competent authority will be Director General of Civil Aviation.

24.

General Provisions.

(1)

The Authority assumes no liability whatsoever for damage, which might be sustained by any person or company in consequence of the fact that the airport or civil enclave or any part thereof and its facilities cannot at the discretion of the Authority be made available temporarily for use for valid reasons or due to circumstances beyond the control of the Authority.

(2)

The Airline companies or their representatives at the airport or civil enclave, shall inform the Competent Authority in advance of the schedules of arrival and departure times of the aircraft, calling at the airports or civil enclaves, and shall obtain slot approval for their schedules from Authority.

(3)

The Airline companies or their representatives shall provide traffic statistics in respect of their operations in such form and at such intervals as may be required by the Competent Authority.

(4)

Furniture and Fixtures provided in the airport or civil enclave premises for the use of passengers and visitors shall be used only for the purpose for which they are intended and shall not be put to any misuse.

Explanation. - here the 'misuse' means that the facility is used for the purpose other than for which the same is provided

(5)

No person shall without the permission of the Competent Authority sell or distribute or offer anything for sale or hire or make any offer of services within the airport or civil enclave.

(6)

The users of the airport or civil enclave shall be liable to pay compensation to the Authority for any damage or loss which may be caused to the property of the Authority as a result of not following these regulations, orders or instructions issued by the Competent Authority from time to time.

(7)

No person shall carry on any trade or business at the airport or civil enclave without obtaining specific permission or licence from the Competent Authority who shall have the right to refuse, for reasons to be recorded in writing, or grant such permission and if granting, subject to such terms and conditions, as may be determined by the Competent Authority, including, security clearance from Bureau of Civil Aviation Security formed under Ministry of Civil Aviation in 1988, for establishments operating inside the security hold area.

(8)

The Competent Authority or any other person authorised by the Chairperson by special or general order, in writing, in this behalf, may at all reasonable times enter any place to which access is necessary for the purpose of exercising the powers or carrying out his duties under these regulations.

(9)

Obstruction of authorised persons - No person shall voluntarily obstruct any person acting in the exercise of the powers or in the discharge of his duties under these regulations.

(10)

The holder of valid Photo Identity Card shall display the same while entering into or being in the Terminal Building or any part thereof of civil airports or civil enclaves.

25.

Penalties.

- Any person contravening any of the provisions of these regulations shall be punishable with fine which may extend to five hundred rupees and in the case of continuing contravention with an additional fine which may extend to Rs.20 (twenty rupees) for everyday during which such contravention continues after conviction for the first such contravention.

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